

**Superior Court of the State of California  
County of Orange**

**DEPT C13 TENTATIVE RULINGS**

**The Honorable Nico A. Dourbetas**

**Civil Court Reporters:** The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

**Tentative Rulings:** The Court will endeavor to post tentative rulings on the Court's website by 4 p.m. on the day before the motion is set to be heard. Do NOT call the Department for a tentative ruling if none is posted. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

**Submitting on the Tentative Ruling:** If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5213. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Please do not call the Department unless ALL parties submit on the tentative ruling.**

**Non-Appearances:** If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

**Appearances:** Counsel may appear by video on Zoom.

1. Visit <https://www.occourts.org/media-relations/aci.html>

**Date:** May 15, 2026

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| <b>1</b> | <b>CAS Properties, LLC vs.<br/>Nokomis Research Inc.</b><br><br>2024-01449138 | <b>Motion to Be Relieved as Counsel of<br/>Record</b><br><br>The motion of attorneys Derek A. Newman and Derek Linke of Newman LLP to withdraw as attorney of record for Plaintiff CAS Properties, LLC is CONTINUED to June 26, 2026 at 9 AM.<br><br>Service of the moving papers was completed by electronic mail, however, Mr. Newman's declaration only confirms confirmation of the |
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|          |                                                                              | <p>client's last known address. The moving papers should have been served on the client at the last known confirmed address. (Code Civ. Proc. § 284, CRC 3.1362.)</p> <p>Within 5 days of this Order, moving attorneys are to re-serve the moving papers by mail, overnight mail or personal service at the client's last known address.</p> <p>Moving Party shall give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| <b>2</b> | <p><b>Lee vs. Mercedes-Benz USA, LLC</b></p> <p>2023-01316486</p>            | <p><b>1. Motion to Compel Production</b><br/> <b>2. Motion – Other (To Compel Deposition of Person Most Knowledgeable for Mercedes-Benz USA, LLC)</b></p> <p>Plaintiff John Lee's Motion to Compel Deposition Attendance with Production of Documents is DENIED as Moot.</p> <p>The prior hearing on this motion was continued to allow the parties to engage in a good faith meet and confer.</p> <p>On April 21, 2026, the parties filed a Joint Status Report stating that the PMK deposition was to go forward on April 23, 2026. Plaintiff's counsel represented they would inform the court no later than April 24, 2026, whether the motion is withdrawn or whether the hearing should proceed as scheduled. Plaintiff did not file any such notice with the court. Therefore, the court assumes the motion has been rendered moot.</p> <p>Accordingly, the motion is DENIED as Moot. Plaintiff's request for sanctions is also DENIED.</p> |
| <b>3</b> | <p><b>Jack in the Box Inc. vs. Altametrics, LLC</b></p> <p>2026-01543053</p> | <b>Motion to Seal</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |